

~~CC: 020/030~~
CC: 05/06c
RECEIVED Public
04 OCT -6 AM 10:02
ALS(2)

BEFORE THE
FEDERAL MARITIME COMMISSION

TRANS-NET, INC.)
)
Complainant,)
)
v.)
)
FESCO OCEAN MANAGEMENT LIMITED)
)
Respondent.)

Docket No. 04-07

OFFICE OF THE SECRETARY
FEDERAL MARITIME COMM

FESCO Ocean Management Limited
Request for Oral Argument on
Motion to Dismiss/Motion for Summary Judgment

FESCO Ocean Management Limited ("FOML") respectfully requests that the Chief Administrative Law Judge, consistent with Federal court practice, set a time for the parties to appear before him to submit oral argument on the Motion to Dismiss/Motion for Summary Judgment, filed on August 16, 2004 to which a response was filed by Trans-Net, Inc. ("Trans-Net") on September 27, 2003.

FOML submits that the issues raised in its pending Motion and the Trans-Net Reply warrant a full opportunity for the benefit of the Chief Administrative Law Judge to hear counsel develop their positions through oral argument and to permit counsel to respond to any questions concerning the issues that have been presented, prior to decision on the Motion. FOML counsel respectfully requests at least thirty (30) minutes to argue FOML's case.

FOML requests that because of prior commitments of its counsel, the argument be scheduled for the week of October 25, 2004 or thereafter.

Respectfully submitted,

HOPPEL, MAYER & COLEMAN

By:



Neal M. Mayer
Paul D. Coleman

Attorneys for:
FESCO Ocean Management Limited

Certificate of Service

I, Neal M. Mayer, certify that the foregoing document was served this
6th day of October, 2004 upon Eliot J. Halperin, Esq. and Deana E.
Rose. Esq. by email and by first class mail, postage prepaid.

